Tool 1 — Neurodata Governance Decision Tool

Supplementary Table 6

Scientist-facing decision tool for assigning a provisional functional-exposure tier (5, 4, 3, 2, 1) to the particular neurodata object or artefact under assessment and identifying the corresponding baseline safeguards. The assessment considers technical form together with identifiability, traceability, inferential capacity, reconstruction potential and computational persistence. Model incorporation triggers further assessment but does not automatically determine Tier 5. A tier is confirmed only when all applicable steps and required reviews are complete; an Unknown answer produces a provisional tier; a Tool 3 referral identifies a candidate tier.

Step	Question	Answer	Risk tier	Required action
Applicability checkpoint	Which statutory access regimes and ex ante data-protection, privacy-impact or privacy-risk assessment requirements may apply to the proposed activity? Consider the data category, holder, purpose, jurisdiction and application date, including EHDS where relevant. Assess legal applicability separately from functional-exposure tier.	Complete checkpoint	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record potentially applicable regimes and assessment requirements in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Record any unresolved applicability question and refer it to the responsible legal or institutional reviewer in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Continue to Step 1. Completion of this checkpoint does not resolve or waive an outstanding legal requirement.
1	Does this object contain, represent or derive from human neurodata? Examples include MRI, fMRI, EEG, MEG, ECoG, neural implant data, BCI recordings, neural features, embeddings, predictions, or AI models trained using neurodata.	No	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record why the object falls outside this Tool's scope in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Record the outcome as "Not applicable" in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Follow the institution's ordinary data-governance procedures. End this Tool.
1	Does this object contain, represent or derive from human neurodata? Examples include MRI, fMRI, EEG, MEG, ECoG, neural implant data, BCI recordings, neural features, embeddings, predictions, or AI models trained using neurodata.	Yes	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record the object's human-neurodata source or relationship in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Continue to Step 2A.

Step	Question	Answer	Risk tier	Required action
1	Does this object contain, represent or derive from human neurodata? Examples include MRI, fMRI, EEG, MEG, ECoG, neural implant data, BCI recordings, neural features, embeddings, predictions, or AI models trained using neurodata.	Unsure	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record the uncertainty in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Obtain clarification from the Principal Investigator, data steward or technical lead before beginning the proposed sharing or analysis. Pause this assessment. Return to Step 1 when the evidence supports “Yes” or “No”.
2A	Has this neurodata, or information derived from it, been incorporated into a trained AI model or persistent computational infrastructure? Examples include model weights, foundation models, federated-learning systems, synthetic-data generators, model gradients, or shared embedding repositories.	Yes	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record the model or infrastructure and the form of incorporation in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Mark Tool 3 (Supplementary Table 8) as required. Continue to Step 2B.
2A	Has this neurodata, or information derived from it, been incorporated into a trained AI model or persistent computational infrastructure? Examples include model weights, foundation models, federated-learning systems, synthetic-data generators, model gradients, or shared embedding repositories.	No	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record the basis for this answer in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Continue to Step 3.

Step	Question	Answer	Risk tier	Required action
2A	Has this neurodata, or information derived from it, been incorporated into a trained AI model or persistent computational infrastructure? Examples include model weights, foundation models, federated-learning systems, synthetic-data generators, model gradients, or shared embedding repositories.	Unknown	Tier 5	Record provisional Tier 5 in Neurodata Governance Assessment Record (Schedule B of the MDTAA) and apply the Tier 5 safeguards specified in Annexure 1 §3.5 to the relevant object and activity. Request technical confirmation of whether incorporation has occurred. Continue to Step 3 to identify additional exposure and safeguards. When clarification is available, return to Step 2A: if "Yes", continue to Step 2B; if "No", document resolution of this provisional finding and continue to Step 3. Do not finalise a lower tier or proceed with affected sharing, transfer or deployment while this uncertainty remains unresolved. For legacy datasets with incomplete provenance, this is a precautionary provisional classification; it does not establish that model incorporation or continuing exposure occurred. Resolve it by documenting whether and how the neurodata entered a model or persistent computational infrastructure, then reassess under Steps 2A and 2B.
2B	Is there evidence, or a reasonable possibility, that neural information persists within the model or computational infrastructure in a manner capable of supporting identification, inference, reconstruction, extraction or profiling of individuals or groups? Consider model memorisation, inversion, membership inference, extraction attacks, reconstructive outputs, shared embeddings and other forms of persistent representation.	Yes	Tier 5	Record a provisional Tier 5 condition in Neurodata Governance Assessment Record (Schedule B of the MDTAA) and apply Tier 5 safeguards provisionally under Annexure 1 §3.5. Record the evidence or credible technical assessment supporting continuing functional exposure in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Initiate or complete Tool 3 (Supplementary Table 8) and apply the Tool 3 (Supplementary Table 8) return procedure below. Continue to Step 3 to identify additional exposure and safeguards. Tier 5 remains unconfirmed until the required assessment establishes its criteria.
2B	Is there evidence, or a reasonable possibility, that neural information persists within the model or computational infrastructure in a manner capable of supporting identification, inference, reconstruction, extraction or profiling of individuals or groups? Consider model memorisation, inversion, membership inference, extraction attacks, reconstructive outputs, shared embeddings and other forms of persistent representation.	No	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record the supporting technical assessment in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Complete Tool 3 (Supplementary Table 8) because Step 2A was answered "Yes"; this answer does not remove that requirement. Apply the Tool 3 (Supplementary Table 8) return procedure below. Continue to Step 3. Do not remove an existing higher-tier finding solely on the basis of this answer.

Step	Question	Answer	Risk tier	Required action
2B	Is there evidence, or a reasonable possibility, that neural information persists within the model or computational infrastructure in a manner capable of supporting identification, inference, reconstruction, extraction or profiling of individuals or groups? Consider model memorisation, inversion, membership inference, extraction attacks, reconstructive outputs, shared embeddings and other forms of persistent representation.	Unknown	Tier 5	Record provisional Tier 5 in Neurodata Governance Assessment Record (Schedule B of the MDTAA) and apply Tier 5 safeguards under Annexure 1 §3.5. Record the unresolved exposure question in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Obtain appropriate specialist technical, legal, ethics or institutional review and complete Tool 3 (Supplementary Table 8). Apply the Tool 3 (Supplementary Table 8) return procedure below. Continue to Step 3 to identify additional exposure and safeguards. Do not finalise a lower tier or proceed with affected sharing, transfer or deployment until the uncertainty is resolved.
3	Is this object a derived neurodata product rather than the original neurodata? Examples include embeddings, feature vectors, neural fingerprints, cognitive profiles, classifiers, predictions, or reconstructed neural representations.	Yes	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record the source neurodata and the transformation that produced the object in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Continue to Step 4.
3	Is this object a derived neurodata product rather than the original neurodata? Examples include embeddings, feature vectors, neural fingerprints, cognitive profiles, classifiers, predictions, or reconstructed neural representations.	No	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record the basis for treating the object as original neurodata in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Continue to Step 5 to assess direct identification and traceability.
3	Is this object a derived neurodata product rather than the original neurodata? Examples include embeddings, feature vectors, neural fingerprints, cognitive profiles, classifiers, predictions, or reconstructed neural representations.	Unknown	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Obtain provenance or processing information from the data steward or technical lead. Retain all existing tier findings and safeguards. Pause progression beyond this step. Return to Step 3 when the evidence supports “Yes” or “No”.

Step	Question	Answer	Risk tier	Required action
4	Can this derived object reasonably identify or trace an individual, or reveal, predict, reconstruct or profile neurological, cognitive, emotional, or behavioural states, traits or status concerning an individual or sufficiently defined group, including consideration of additional information reasonably available to the intended controlled-access recipient or, where public release is proposed, in the reasonably foreseeable public-access environment? Apply Annexure 1 §4.1.6 and the distinction in §2.1 between ordinary aggregate description and material group-level Functional Exposure.	Yes	Tier 4	Record a Tier 4 finding and the relevant capability in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Restrict access to controlled access; document permitted uses and prohibited inferences in Neurodata Governance Assessment Record (Schedule B of the MDTAA); prohibit unauthorised profiling, reconstruction and general-purpose AI training; and maintain provenance records. Obtain specialist governance review and complete Tool 3 (Supplementary Table 8). Complete Neuro-TADT (Tool 2) (Supplementary Table 7) before external sharing or international transfer. Retain any higher tier finding. Continue to Step 5.
4	Can this derived object reasonably identify or trace an individual, or reveal, predict, reconstruct or profile neurological, cognitive, emotional, or behavioural states, traits or status concerning an individual or sufficiently defined group, including consideration of additional information reasonably available to the intended controlled-access recipient or, where public release is proposed, in the reasonably foreseeable public-access environment? Apply Annexure 1 §4.1.6 and the distinction in §2.1 between ordinary aggregate description and material group-level Functional Exposure.	No	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record the evidence supporting this answer in Neurodata Governance Assessment Record (Schedule B of the MDTAA), including consideration of additional information reasonably available to the intended recipient. Continue to Step 5.
4	Can this derived object reasonably identify or trace an individual, or reveal, predict, reconstruct or profile neurological, cognitive, emotional, or behavioural states, traits or status concerning an individual or sufficiently defined group, including consideration of additional information reasonably available to the intended controlled-access recipient or, where public release is proposed, in the reasonably foreseeable public-access environment? Apply Annexure 1 §4.1.6 and the distinction in §2.1 between ordinary aggregate description and material group-level Functional Exposure.	Unknown	Tier 4	Record provisional Tier 4 and the capability requiring assessment in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Apply the safeguards specified in the Step 4 “Yes” row provisionally. Complete Tool 3 (Supplementary Table 8) and obtain the specialist review needed to resolve the uncertainty. Retain any higher tier finding. Continue to Step 5.
5	Does the object contain direct identifiers, recognisable identifying anatomy, identifying acquisition metadata, or intrinsic information that reasonably permits participant identification or tracing beyond linkage through a separately protected code or mapping? Examples include names, identifying DICOM headers, non-defaced facial anatomy, identifying voice or video, or device identifiers and timestamps that enable tracing. Being a raw EEG, MEG, ECoG or MRI acquisition is not, by itself, a “Yes”; linkage solely through a protected code or mapping is assessed at Step 6.	Yes	Tier 3	Record a Tier 3 finding and the identifiers or intrinsic traceability identified in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Store the object in a secure controlled environment with encryption, role-based access, audit logs, and formal access approval. Remove unnecessary identifiers where feasible and restrict downloads and onward sharing. Complete Neuro-TADT (Tool 2) (Supplementary Table 7) before international transfer or external access. Retain any higher tier finding. Continue to Step 6.

Step	Question	Answer	Risk tier	Required action
5	Does the object contain direct identifiers, recognisable identifying anatomy, identifying acquisition metadata, or intrinsic information that reasonably permits participant identification or tracing beyond linkage through a separately protected code or mapping? Examples include names, identifying DICOM headers, non-defaced facial anatomy, identifying voice or video, or device identifiers and timestamps that enable tracing. Being a raw EEG, MEG, ECoG or MRI acquisition is not, by itself, a “Yes”; linkage solely through a protected code or mapping is assessed at Step 6.	No	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record the basis for concluding that the specified identifiers and intrinsic traceability are absent in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Continue to Step 6.
5	Does the object contain direct identifiers, recognisable identifying anatomy, identifying acquisition metadata, or intrinsic information that reasonably permits participant identification or tracing beyond linkage through a separately protected code or mapping? Examples include names, identifying DICOM headers, non-defaced facial anatomy, identifying voice or video, or device identifiers and timestamps that enable tracing. Being a raw EEG, MEG, ECoG or MRI acquisition is not, by itself, a “Yes”; linkage solely through a protected code or mapping is assessed at Step 6.	Unknown	Tier 3	Record provisional Tier 3 in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Apply the safeguards specified in the Step 5 “Yes” row provisionally. Assign an identifier and traceability review to the responsible data steward or technical reviewer. Retain any higher tier finding. Continue to Step 6. Return to Step 5 when the review supports “Yes” or “No”.
6	Does the object still contain participant-level neurodata that can be linked back to an individual through a code, repository record, or institutional key? Example: A pseudonymised EEG dataset linked to a participant identifier held by the originating institution, or a de-identified MRI scan that can be re-linked through a secure repository key.	Yes	Tier 2	Record a Tier 2 finding, the linkage mechanism and the responsible custodian in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Use controlled-access repositories; separate and protect the linkage key; encrypt data in storage and transit; maintain access logs; and restrict re-identification and onward sharing. Put any required Data Use or Transfer Agreement in place before the relevant access or transfer. Where another institution holds the key, record its custody and restrictions without obtaining or disclosing the key. Retain any higher tier finding. Proceed to the Final Decision.
6	Does the object still contain participant-level neurodata that can be linked back to an individual through a code, repository record, or institutional key? Example: A pseudonymised EEG dataset linked to a participant identifier held by the originating institution, or a de-identified MRI scan that can be re-linked through a secure repository key.	No	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record the evidence supporting the absence of linkage through a code, repository record, or institutional key in Neurodata Governance Assessment Record (Schedule B of the MDTAA). If a candidate, provisional, or confirmed Tier 3, Tier 4 or Tier 5 finding remains active, proceed to the Final Decision. Otherwise, continue to Step 7.

Step	Question	Answer	Risk tier	Required action
6	Does the object still contain participant-level neurodata that can be linked back to an individual through a code, repository record, or institutional key? Example: A pseudonymised EEG dataset linked to a participant identifier held by the originating institution, or a de-identified MRI scan that can be re-linked through a secure repository key.	Unknown	Tier 2	Record provisional Tier 2 in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Apply the linkage safeguards specified in the Step 6 “Yes” row to any existing or potentially retained linkage mechanism. Request confirmation from the data holder or repository custodian about whether participant-level linkage remains possible. Retain any higher tier finding. Proceed to the Final Decision with the uncertainty unresolved. When confirmation is available, return to Step 6 and follow the “Yes” or “No” branch.
7	Does the object contain only aggregated or summary-level information with no participant-level records or persistent participant trace? Example: A published study reporting only group-average brain activation patterns, summary statistics, or aggregate connectivity measures with no participant-level records or re-identifiable individual data.	Yes	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record the aggregation or summarisation method and the evidence that no participant-level records or persistent participant trace remain in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Continue to Step 8.
7	Does the object contain only aggregated or summary-level information with no participant-level records or persistent participant trace? Example: A published study reporting only group-average brain activation patterns, summary statistics, or aggregate connectivity measures with no participant-level records or re-identifiable individual data.	No	Tier 2	Record “Reassessment required” in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Review the object’s technical form, provenance and exposure characteristics, then revisit Steps 3–6 and correct any answers affected by the review. If the evidence supports a tier, record the assigned tier and continue the classification workflow. For participant-level data that are de-identified and have no reasonably available linkage mechanism, or if a linkage key or other reasonably available linkage mechanism is retained, assign Tier 2. If the data remain identifiable or intrinsically traceable, assign the applicable higher tier. Refer for specialist review only where the available evidence is insufficient or the appropriate tier remains uncertain. Resume at the relevant step when the review provides sufficient evidence.
7	Does the object contain only aggregated or summary-level information with no participant-level records or persistent participant trace? Example: A published study reporting only group-average brain activation patterns, summary statistics, or aggregate connectivity measures with no participant-level records or re-identifiable individual data.	Unknown	No tier is assigned at this step. Follow the instructions in the Required action column. Any tier identified at an earlier step remains applicable unless resolved through documented reassessment.	Record that aggregate-only status has not been established in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Request technical review of participant-level records, persistent traces and the aggregation or summarisation method. Pause classification and retain any existing safeguards. Do not approve release through this Tool while the uncertainty remains unresolved. Return to Step 7 when the evidence supports “Yes” or “No”.

Step	Question	Answer	Risk tier	Required action
8	Could an individual or small group still reasonably be identified through rare conditions, small sample sizes, unique characteristics, or accompanying metadata? Example: A dataset describing a single participant with a rare neurological disorder, a very small cohort from one clinic, or records containing unique demographic or geographic metadata that could enable re-identification.	Yes	Tier 2	Record Tier 2 as the minimum applicable tier and identify the disclosure mechanism in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Increase aggregation or suppress disclosive information where feasible. Determine and record the necessary access restrictions, including controlled access where required. Reassess the modified object before release, repeating Steps 7–8 and any earlier step affected by the modification. Retain any higher tier finding unless documented reassessment resolves it. Proceed to the Final Decision.
8	Could an individual or small group still reasonably be identified through rare conditions, small sample sizes, unique characteristics, or accompanying metadata? Example: A dataset describing a single participant with a rare neurological disorder, a very small cohort from one clinic, or records containing unique demographic or geographic metadata that could enable re-identification.	No	Tier 1 Note: A Tier 1 outcome does not automatically exclude Annexure 3 in the MDTAA. Apply the exception and triggers in Annexure 1 §7.2 in the MDTAA to the particular object and proposed activity, and record the reason for completing or omitting Annexure 3 in the MDTAA. A Tier 1 outcome shall not override a higher candidate, provisional or confirmed tier identified elsewhere in the assessment.	Record a Tier 1 finding and the supporting disclosure-risk assessment in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Document the aggregation or anonymisation method and confirm that no participant-level record, persistent participant trace or linkage mechanism remains in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Check the triggers and exceptions in Annexure 1 §7.2 and record why Tool 3 (Supplementary Table 8) is required or may be omitted. Do not use this finding to override a higher candidate, provisional or confirmed tier. Proceed to the Final Decision.
8	Could an individual or small group still reasonably be identified through rare conditions, small sample sizes, unique characteristics, or accompanying metadata? Example: A dataset describing a single participant with a rare neurological disorder, a very small cohort from one clinic, or records containing unique demographic or geographic metadata that could enable re-identification.	Unknown	Tier 2	Record provisional Tier 2 in Neurodata Governance Assessment Record (Schedule B of the MDTAA). Obtain a disclosure-risk review addressing rare conditions, small samples, unique characteristics, and accompanying metadata. Withhold release pending resolution of this uncertainty. Retain any higher tier finding. Proceed to the Final Decision with the uncertainty unresolved. Return to Step 8 when the review supports “Yes” or “No”.

Step	Question	Answer	Risk tier	Required action
Final Decision	Have all applicable steps and required classification reviews been completed?	Complete assessment	-	Record the highest applicable tier and whether it is provisional or confirmed. Do not finalise a lower tier while a higher candidate or provisional finding remains unresolved. Retain all safeguards whose underlying conditions remain present. Save the outcome, supporting evidence, outstanding actions and responsible reviewer in the assessment record; incorporate or reference it in Neurodata Governance Assessment Record (Schedule B of the MDTAA) where applicable. Complete or update Tools 2 (Supplementary Table 7) and 3 (Supplementary Table 8) where required, then proceed to Tool 4 (Supplementary Table 9) where contractual implementation is needed. Do not begin the proposed activity until required safeguards and approvals are in place. If public release is proposed, continue to Tool 2 / Table 7 using the Public-release pathway.

Tool 2 — Neurodata Transfer and Access Decision Tool (Neuro-TADT)

Supplementary Table 7

Assesses whether the safeguards associated with the tier assigned under Tool 1 can be maintained across a proposed sharing, repository, remote-access, cloud or cross-border pathway. Step 3 separates a controlled-access pathway (Steps 4A–12A) from a public-release pathway (Steps 4B–12B). Four outcomes: proceed subject to applicable approvals; proceed after supplementary safeguards; redesign the pathway; do not proceed and obtain specialist review.

Step	Question	Answer	Required action
General instructions before using this tool: Assess the proposed transfer or access arrangement using the tier and safeguards identified in Supplementary Table 6. Wherever this Tool says "record", enter the information against the relevant step in the transfer and access section of the Neurodata Governance Assessment Record. Where the MDTAA applies, incorporate or reference that assessment in Schedule C and link it to the classification recorded in Schedule B. Record supporting evidence, outstanding actions and responsible persons. Continuing through the assessment does not authorise transfer or access. A later answer does not remove an earlier restriction or unresolved requirement.			
1	What are you planning to do with the neurodata? Example: Using an EEG dataset to train a machine learning model for early detection of Alzheimer's disease.	Internal use only with no external or cross border sharing or access to data.	Record the internal use and why no listed external or cross-border pathway applies. Apply the safeguards identified in Supplementary Table 6 and assess applicable statutory access and authorisation requirements. Record "Neuro-TADT not required for this arrangement" and end this Tool. Other applicable governance assessments remain required.
1	What are you planning to do with the neurodata? Example: Using an EEG dataset to train a machine learning model for early detection of Alzheimer's disease.	Share with another institution; international transfer; repository deposit; cloud-hosted access; or AI platform or vendor access, public/open-access release	Record every selected pathway and proposed activity. Continue to Step 2.
1	What are you planning to do with the neurodata? Example: Using an EEG dataset to train a machine learning model for early detection of Alzheimer's disease.	Unsure	Obtain clarification of the proposed storage, sharing, access and processing arrangements. Pause the assessment and do not begin the proposed transfer or external access. Return to Step 1 when the pathway is established.
2	Has the neurodata already been assigned a risk tier using (Tool 1) Supplementary Table 6? Example: The neurodata has been classified as Tier 2 (Moderate Risk) using the criteria in Supplementary Table 6 before planning further processing or sharing.	Yes	Record the tier, whether it is provisional or confirmed, the applicable safeguards and the (Tool 1) Supplementary Table 6 assessment reference. Carry forward all unresolved conditions and restrictions. A provisional tier may support pathway assessment but does not remove required review. Continue to Step 3.
2	Has the neurodata already been assigned a risk tier using (Tool 1) Supplementary Table 6? Example: The neurodata has been classified as Tier 2 (Moderate Risk) using the criteria in Supplementary Table 6 before planning further processing or sharing.	No	Complete (Tool 1) Supplementary Table 6 to get a risk tier assigned to the particular data object and proposed activity. Return to Step 2 after a tier has been assigned. If (Tool 1) Supplementary Table 6 cannot establish a tier and requires specialist review, select Final Decision Outcome 4 below.
2	Has the neurodata already been assigned a risk tier using (Tool 1) Supplementary Table 6? Example: The neurodata has been classified as Tier 2 (Moderate Risk) using the criteria in Supplementary Table 6 before planning further processing or sharing.	Unsure	Locate the existing classification and check that it covers the object, version and proposed activity. Complete or update records according to Supplementary Table 6 if the classification is absent or no longer applicable. Return to Step 2 when the tier and safeguards are established.

Step	Question	Answer	Required action
3	Who will receive or access the neurodata, or is public/open-access release proposed? Example: An approved research collaborator, an international research consortium, or a trusted cloud service provider processing the neurodata under a data processing agreement.	Named or identifiable controlled-access recipient(s): collaborating institution; repository; cloud provider; commercial partner; AI developer	Record each recipient's name, role and proposed activity. Mark pathway Controlled access. Continue to Step 4A.
3	Who will receive or access the neurodata, or is public/open-access release proposed? Example: An approved research collaborator, an international research consortium, or a trusted cloud service provider processing the neurodata under a data processing agreement.	Intended controlled-access recipient(s) are not yet identified	Record which recipients are unidentified. Obtain recipient information. Do not begin transfer/access. Return to Step 3 when identified. If they cannot be identified → Final Decision Outcome 4.
3	Who will receive or access the neurodata, or is public/open-access release proposed? Example: An approved research collaborator, an international research consortium, or a trusted cloud service provider processing the neurodata under a data processing agreement.	Public/open-access release proposed	Record the object and version proposed for release. Record releasing organisation. Record repository/distribution channel. Record proposed licence/access conditions. Mark pathway Public release. Confirm Tool 1 / Supplementary Table 6 covers this object under proposed public-access conditions. Complete/update Tool 3 / Supplementary Table 8 where applicable. Continue to Step 4B.
4A	Can every recipient and subprocessor be identified? Example: All recipients are known by name, including collaborating institutions, cloud service providers, and any contracted subprocessors.	Yes	Record each recipient and subprocessor, its role and the information available about its access. Continue to Step 5.
4A	Can every recipient and subprocessor be identified? Example: All recipients are known by name, including collaborating institutions, cloud service providers, and any contracted subprocessors.	No or Unsure	Request complete recipient/subprocessor information. Do not begin access. Return to Step 4A when complete. If unresolved → Final Decision Outcome 4 below.
4B	Can the releasing organisation, repository/distribution platform, hosting provider and known sub-processors be identified?	Yes	Record each organisation/provider and role. Continue to Step 5.
4B	Can the releasing organisation, repository/distribution platform, hosting provider and known sub-processors be identified?	No / Unsure	Obtain the missing release/hosting information. Do not release. Return to Step 4B when established. If unresolved → Final Decision Outcome 4.
5	How will recipients access the neurodata or governed artefact? Example: The recipient can download and retain a local copy of the neurodata rather than accessing it only through a secure remote environment.	Downloadable copy	Record what may be downloaded, by whom and to which environment. Specify tier-appropriate controls for local storage, copying, access, onward sharing, retention and deletion. Continue to Step 6.
5	How will recipients access the neurodata or governed artefact? Example: The recipient can download and retain a local copy of the neurodata rather than accessing it only through a secure remote environment.	Remote or controlled access without downloading the underlying object	Record the access environment, authorised users and restrictions on downloading or exporting data and outputs. Specify access controls, logging and output review appropriate to the tier. Continue to Step 6.
5	How will recipients access the neurodata or governed artefact? Example: The recipient can download and retain a local copy of the neurodata rather than accessing it only through a secure remote environment.	Query-only or federated access	Record where processing occurs and what queries, outputs, gradients or other information may leave each environment. Specify controls on queries, outputs, access and logging appropriate to the tier. Continue to Step 6.

Step	Question	Answer	Required action
5	How will recipients access the neurodata or governed artefact? Example: The recipient can download and retain a local copy of the neurodata rather than accessing it only through a secure remote environment.	Unsure	Obtain confirmation of the access modes and export capabilities from the recipient or infrastructure provider. Pause the assessment and do not begin access. Return to Step 5 when the access arrangements are established.
5	How will recipients access the neurodata or governed artefact? Example: The recipient can download and retain a local copy of the neurodata rather than accessing it only through a secure remote environment.	Public download/open-access repository/API release	Record the release mechanism. Record whether direct download, API access, bulk download or redistribution is enabled. Record registration/embargo/licence/access conditions, if any. Continue to Step 6.
6	Will the neurodata be transferred to, stored in, or remotely accessed from another legal jurisdiction? Example: neurodata remains on a server in South Africa but is accessed remotely by researchers in Germany.	Yes	Record every relevant originating, receiving, hosting and remotely accessing jurisdiction, including relevant subprocessor locations. Continue to Step 7.
6	Will the neurodata be transferred to, stored in, or remotely accessed from another legal jurisdiction? Example: neurodata remains on a server in South Africa but is accessed remotely by researchers in Germany.	No	Record the locations and the basis for concluding that no cross-jurisdictional transfer, storage or remote access is involved. Continue to Step 7.
6	Will the neurodata be transferred to, stored in, or remotely accessed from another legal jurisdiction? Example: neurodata remains on a server in South Africa but is accessed remotely by researchers in Germany.	Unsure	Obtain location and remote-access information from the recipients and infrastructure providers. Do not begin transfer or access while relevant jurisdictions remain unresolved. Return to Step 6 when the locations are established. If they cannot be established, select Final Decision Outcome 4 below.
6	Will the neurodata be transferred to, stored in, or remotely accessed from another legal jurisdiction? Example: neurodata remains on a server in South Africa but is accessed remotely by researchers in Germany.	Public-release pathway — future user locations unknown/unbounded	Record originating jurisdiction. Record releasing-organisation jurisdiction. Record repository/hosting jurisdiction(s). Record known infrastructure/subprocessor jurisdictions. Record future downloader jurisdictions as "Unknown/unbounded by design." Continue to Step 7.
7	Have the applicable lawful basis for processing, the required transfer or remote-access mechanism, any legally required data-protection, privacy-impact or risk assessment, and all necessary legal, ethics, institutional and repository approvals been identified and documented? Consider consent or another lawful basis, statutory transfer provisions, adequacy-type mechanisms, contractual safeguards, DPIAs, PIAs or other jurisdiction-specific data-protection or privacy-risk assessments, regulatory authorisation and institutional approval, as applicable.	Yes	Record the lawful basis, applicable transfer or access mechanism, required assessments and approvals, and their status and references. Record reasons where a mechanism or assessment is not required. Verify the Data Exporter's authority to make the present transfer or release, including applicable upstream conditions. Record any required upstream approval or the provision establishing that separate approval is unnecessary. Mark outstanding approvals as pending. Where the Public-release pathway applies, record the approval/authority for public release of this object and version, including repository/publication conditions and release status. Continue to Step 7A.

Step	Question	Answer	Required action
7	Have the applicable lawful basis for processing, the required transfer or remote-access mechanism, any legally required data-protection, privacy-impact or risk assessment, and all necessary legal, ethics, institutional and repository approvals been identified and documented? Consider consent or another lawful basis, statutory transfer provisions, adequacy-type mechanisms, contractual safeguards, DPIAs, PIAs or other jurisdiction-specific data-protection or privacy-risk assessments, regulatory authorisation and institutional approval, as applicable.	No or Unsure	Identify the missing basis, mechanism, assessment, approval or evidence of authority. Obtain the necessary legal, ethics, institutional or repository review. Do not begin transfer or access. Return to Step 7 when the requirements and their status are documented. If no applicable lawful pathway can be established, select Final Decision Outcome 4 below.
7A	Does the proposed activity require an EHDS permit or other statutory access authorisation?	Yes	Record the competent body, required authorisation, application or approval status, and reference. Record the authorised purpose, users, duration, processing location and release conditions once established. Mark an authorisation not yet obtained as pending; do not begin the activity requiring it. Continue to Step 8A for the controlled-access pathway or Step 8B for the public-release pathway, as applicable.
7A	Does the proposed activity require an EHDS permit or other statutory access authorisation?	No	Record the basis for concluding that no such authorisation is required for this activity. Continue to Step 8A for the controlled-access pathway or Step 8B for the public-release pathway, as applicable.
7A	Does the proposed activity require an EHDS permit or other statutory access authorisation?	Uncertain	Obtain review of the authorisation requirement. Do not begin the affected transfer or access. Return to Step 7A when the requirement is established. If it remains unresolved, select Final Decision Outcome 4 below.
8A	Can the receiving or accessing governance environment implement and maintain the safeguards required for the assigned tier? Consider institutional oversight, repository governance, technical controls, contractual compliance, auditability, enforcement and available remedies.	Yes	Record the evidence of capacity to maintain the required safeguards. Identify any safeguards that the environment can support but has not yet implemented, for verification at Step 13. Continue to Step 9A.
8A	Can the receiving or accessing governance environment implement and maintain the safeguards required for the assigned tier? Consider institutional oversight, repository governance, technical controls, contractual compliance, auditability, enforcement and available remedies.	No	Record which required safeguards cannot be maintained and why. If an alternative access model or governance arrangement could provide the required protection, select Final Decision Outcome 3 below. If no feasible alternative is identified, select Final Decision Outcome 4 below.
8A	Can the receiving or accessing governance environment implement and maintain the safeguards required for the assigned tier? Consider institutional oversight, repository governance, technical controls, contractual compliance, auditability, enforcement and available remedies.	Unsure	Obtain evidence from the receiving institution or infrastructure provider about whether the required safeguards can be maintained. Do not begin access while this remains unresolved. If the safeguards can be maintained, continue to Step 9A. If they cannot, select Final Decision Outcome 3 if a feasible alternative pathway may provide the required protection; otherwise select Outcome 4.

Step	Question	Answer	Required action
8B	Can the safeguards required for the assigned tier be maintained under the proposed public-release pathway, either directly or through documented release-specific safeguards that adequately address the same risks?	Yes	Record the safeguards that will apply before release and identify any controlled-access measure that cannot operate after public release. For each such measure, identify the release-specific safeguard that addresses the same risk and explain why it is adequate for the assessed object and release context. For Tier 2 participant-level data, document residual disclosure and linkage risk, including reasonably foreseeable downstream linkage; confirm release authority and applicable consent, ethics, institutional and upstream conditions; and assess the scope and enforceability of repository or licence terms. De-identification or a re-identification prohibition alone does not establish anonymity or satisfy this Step. Continue to Step 9B only if the assessment supports the proposed release. If required safeguards cannot be maintained, select Final Decisions Outcome 3 where a feasible redesign exists; otherwise select Outcome 4.
8B	Can the safeguards required for the assigned tier be maintained under the proposed public-release pathway, either directly or through documented release-specific safeguards that adequately address the same risks?	No, but controlled access or another release model could preserve them.	Record safeguards that cannot be maintained. Select Final Decision Outcome 3 — Redesign pathway.
8B	Can the safeguards required for the assigned tier be maintained under the proposed public-release pathway, either directly or through documented release-specific safeguards that adequately address the same risks?	No	Record why safeguards cannot be preserved. Select Final Decision Outcome 4.
8B	Can the safeguards required for the assigned tier be maintained under the proposed public-release pathway, either directly or through documented release-specific safeguards that adequately address the same risks?	Unsure	Obtain required review. Do not release. Return to Step 8B when resolved. If unresolved → Final Decision Outcome 4.
9A	Will the neurodata be linked with additional datasets after transfer or access? Examples include genomic, electronic health-record, wearable-device, consumer or public-register data.	Yes	Record the additional datasets, linkage purpose, responsible party and proposed resulting object. Apply Supplementary Table 6 to the proposed linked dataset or resulting object before linkage begins. Update the tier and safeguards recorded at Step 2 and review Steps 3–8 and 7A against that assessment, revising affected answers. Once the affected checks are complete and no blocking outcome applies, continue to Step 10A. Do not repeat the same linkage assessment unless relevant circumstances change.
9A	Will the neurodata be linked with additional datasets after transfer or access? Examples include genomic, electronic health-record, wearable-device, consumer or public-register data.	No	Record that linkage is outside the assessed arrangement and requires reassessment before introduction. Continue to Step 10A.
9A	Will the neurodata be linked with additional datasets after transfer or access? Examples include genomic, electronic health-record, wearable-device, consumer or public-register data.	Unsure	Clarify the proposed linkage, the datasets involved and the resulting object. Do not begin linkage while material uncertainty remains. Return to Step 9A when resolved. If it remains unresolved, select Final Decision Outcome 4.

Step	Question	Answer	Required action
9B	Could the publicly released object reasonably be linked with other available datasets in a way that changes its functional exposure?	Yes	Record foreseeable linkage sources/types. Reapply Tool 1 to the proposed public-release object. Update tier/safeguards where required. Reassess Step 8B using the updated tier and safeguards. If the Step 8B criterion is satisfied, continue directly to Step 10B. If the safeguards cannot be preserved or remain uncertain, follow the applicable Step 8B outcome. Do not repeat Step 9B unless the proposed linkage changes.
9B	Could the publicly released object reasonably be linked with other available datasets in a way that changes its functional exposure?	No	Record supporting assessment. Continue to Step 10B.
9B	Could the publicly released object reasonably be linked with other available datasets in a way that changes its functional exposure?	Unsure	Obtain disclosure/functional-exposure review. Withhold release. Return to Step 9B when resolved.
10A	Will the neurodata or a derivative artefact be used to train, fine-tune, validate, benchmark or deploy an AI or machine-learning system? Example: An external collaborator will use a transferred EEG dataset to fine-tune a model for detecting cognitive impairment, or use the dataset to validate the performance of an existing predictive model.	Yes	Record the proposed AI activities, system, responsible parties and intended outputs. Complete Tool 3 (Supplementary Table 8) for the proposed activity and follow its Final Decision instructions. If the tier or safeguards change, update Step 2 and repeat the affected pathway checks before continuing. If Tool 3 (Supplementary Table 8) requires unresolved specialist review or prohibits proceeding in the current form, select Final Decision Outcome 4 below. Otherwise, continue to Step 11A, carrying forward all outstanding safeguards and restrictions.
10A	Will the neurodata or a derivative artefact be used to train, fine-tune, validate, benchmark or deploy an AI or machine-learning system? Example: An external collaborator will use a transferred EEG dataset to fine-tune a model for detecting cognitive impairment, or use the dataset to validate the performance of an existing predictive model.	No	Record that these AI activities are outside the assessed arrangement and require assessment before introduction. Continue to Step 11A.
10A	Will the neurodata or a derivative artefact be used to train, fine-tune, validate, benchmark or deploy an AI or machine-learning system? Example: An external collaborator will use a transferred EEG dataset to fine-tune a model for detecting cognitive impairment, or use the dataset to validate the performance of an existing predictive model.	Unsure	Obtain confirmation of the intended AI activities from the recipient. Prohibit unassessed AI use pending clarification. Return to Step 10A when the answer is established. If the intended use cannot be established, select Final Decision Outcome 4 below.
10B	Under the proposed public-release conditions, is downstream AI/ML reuse permitted or reasonably available?	Yes	Record that AI/ML reuse is permitted/foreseeable. Check whether this conflicts with safeguards or upstream restrictions. If the released object is itself a derivative/model/embedding/etc., complete Tool 3 / Supplementary Table 8. Continue to Step 11B if there is no blocking issue.
10B	Under the proposed public-release conditions, is downstream AI/ML reuse permitted or reasonably available?	No — AI/ML reuse is restricted under release conditions	Record restriction and mechanism used. Continue to Step 11B.
10B	Under the proposed public-release conditions, is downstream AI/ML reuse permitted or reasonably available?	Unknown / cannot be controlled	Record inability to control downstream AI/ML use. Determine whether the inability to control downstream AI/ML reuse prevents a required safeguard from being maintained. If the pathway can be redesigned, narrowed or converted to controlled access, select Final Decision Outcome 3. If no acceptable pathway can preserve the required protection, select Final Decision Outcome 4. Otherwise continue to Step 11B.

Step	Question	Answer	Required action
11A	Will the neurodata be used for a purpose materially different from the approved research purpose? Examples may include commercial development, employment, insurance, clinical deployment or unrelated secondary research where these activities fall outside the already approved purpose, consent, ethics approval or other applicable authorisation. Interpretive note: Assess the proposed purpose against the authorisations and conditions applicable to this activity, including upstream restrictions and relevant consent, ethics and institutional requirements. A purpose different from the original study is not automatically prohibited, and public availability does not automatically authorise it. Record the basis for permitting the proposed use or the additional review or approval required.	Yes	Record the proposed purpose and the legal, consent, ethics, institutional, contractual and upstream conditions that apply. Obtain any required approval before the new use begins. If the use is authorised, record its scope and restrictions. Continue to Step 12A.
11A	Will the neurodata be used for a purpose materially different from the approved research purpose? Examples may include commercial development, employment, insurance, clinical deployment or unrelated secondary research where these activities fall outside the already approved purpose, consent, ethics approval or other applicable authorisation. Interpretive note: Assess the proposed purpose against the authorisations and conditions applicable to this activity, including upstream restrictions and relevant consent, ethics and institutional requirements. A purpose different from the original study is not automatically prohibited, and public availability does not automatically authorise it. Record the basis for permitting the proposed use or the additional review or approval required.	No	Record the approved purpose and the authorisation or conditions covering it. Continue to Step 12A.
11A	Will the neurodata be used for a purpose materially different from the approved research purpose? Examples may include commercial development, employment, insurance, clinical deployment or unrelated secondary research where these activities fall outside the already approved purpose, consent, ethics approval or other applicable authorisation. Interpretive note: Assess the proposed purpose against the authorisations and conditions applicable to this activity, including upstream restrictions and relevant consent, ethics and institutional requirements. A purpose different from the original study is not automatically prohibited, and public availability does not automatically authorise it. Record the basis for permitting the proposed use or the additional review or approval required.	Unsure	Clarify the proposed purpose with the recipient and compare it with applicable authorisations and restrictions. Do not begin the uncertain use. Return to Step 11A when the answer is established. If it remains unresolved, select Final Decision Outcome 4 below.
11B	Do the proposed public-use conditions allow reuse beyond the currently approved purpose?	Yes	Record scope of permitted downstream reuse. Confirm that the breadth of public reuse is covered by required approvals/permissions. If the authorised scope can be achieved by narrowing or redesigning the public-release conditions, select Final Decision Outcome 3. If the required authority or approval for the proposed scope cannot be established, select Final Decision Outcome 4. Otherwise continue to Step 12B.

Step	Question	Answer	Required action
11B	Do the proposed public-use conditions allow reuse beyond the currently approved purpose?	No	Record permitted purpose and restrictions. Continue to Step 12B.
11B	Do the proposed public-use conditions allow reuse beyond the currently approved purpose?	Unsure	Clarify licence/repository/approval conditions. Withhold release. Return to Step 11B.
12A	May the recipient disclose, transfer, or provide access to the neurodata or resulting artefacts to another party? This includes collaborators, repositories, vendors, cloud providers, subprocessors and downstream recipients.	Yes	Record permitted onward recipients or recipient categories, purposes and conditions. Check that onward permission is consistent with upstream conditions. Distinguish permission already granted from permission requiring separate approval. Require applicable safeguards to continue throughout the onward pathway and mark outstanding approvals as pending. If the proposed onward arrangement introduces recipients, locations or access modes not yet assessed, update Steps 3–8 and 7A before continuing. Continue to Step 13.
12A	May the recipient disclose, transfer, or provide access to the neurodata or resulting artefacts to another party? This includes collaborators, repositories, vendors, cloud providers, subprocessors and downstream recipients.	No	Record and contractually implement the prohibition on onward transfer or access. Continue to Step 13. This prohibition concerns the recipient's onward sharing; authority for the Data Exporter's present transfer remains subject to Step 7.
12A	May the recipient disclose, transfer, or provide access to the neurodata or resulting artefacts to another party? This includes collaborators, repositories, vendors, cloud providers, subprocessors and downstream recipients.	Unsure	Clarify the onward-sharing permissions and upstream restrictions. Do not permit onward sharing while permission remains unresolved. Return to Step 12A when the answer is established. If the arrangement cannot be assessed without resolving this issue, select Final Decision Outcome 4 below.
12B	Does the public-release mechanism permit copying, redistribution, mirroring or onward publication?	Yes	Record permitted forms of redistribution. Record applicable licence/conditions. Check whether continuing safeguards are compatible with redistribution. If incompatibility can be resolved by restricting redistribution or redesigning the release pathway, select Final Decision Outcome 3. If required safeguards cannot be preserved under any acceptable release arrangement, select Final Decision Outcome 4. Otherwise continue to Step 13.
12B	Does the public-release mechanism permit copying, redistribution, mirroring or onward publication?	No	Record restriction and mechanism implementing it. Continue to Step 13.
12B	Does the public-release mechanism permit copying, redistribution, mirroring or onward publication?	Unsure	Clarify repository/licence conditions. Withhold release. Return to Step 12B.
13	Have all safeguards and approvals required for the assigned tier and proposed access or release pathway been implemented and documented? Example: Before an international transfer of Tier 3 MRI data, the parties have confirmed the applicable transfer mechanism and approvals, implemented encrypted transfer and role-based access, enabled audit logging, restricted onward sharing, and documented permitted uses, retention, deletion and incident-response requirements.	Yes	Record the implementation evidence and responsible verifier. Proceed to the Final Decision below and check the conditions for Outcome 1. Outstanding requirements identified earlier must still be satisfied.

Step	Question	Answer	Required action
13	Have all safeguards and approvals required for the assigned tier and proposed access or release pathway been implemented and documented? Example: Before an international transfer of Tier 3 MRI data, the parties have confirmed the applicable transfer mechanism and approvals, implemented encrypted transfer and role-based access, enabled audit logging, restricted onward sharing, and documented permitted uses, retention, deletion and incident-response requirements.	No, but they can be implemented.	Record each outstanding safeguard, the responsible party and the evidence needed to verify implementation. Proceed to the Final Decision below and select Outcome 2 only if its conditions are met. Do not begin transfer, access, or release before implementation is verified.
13	Have all safeguards and approvals required for the assigned tier and proposed access or release pathway been implemented and documented? Example: Before an international transfer of Tier 3 MRI data, the parties have confirmed the applicable transfer mechanism and approvals, implemented encrypted transfer and role-based access, enabled audit logging, restricted onward sharing, and documented permitted uses, retention, deletion and incident-response requirements.	No, and they cannot be implemented within the proposed pathway	Record the safeguards that cannot be implemented. Select Outcome 3 if a feasible alternative arrangement may provide the required protection. Otherwise, select Final Decision Outcome 4 below.
13	Have all safeguards and approvals required for the assigned tier and proposed access or release pathway been implemented and documented? Example: Before an international transfer of Tier 3 MRI data, the parties have confirmed the applicable transfer mechanism and approvals, implemented encrypted transfer and role-based access, enabled audit logging, restricted onward sharing, and documented permitted uses, retention, deletion and incident-response requirements.	Unsure	Obtain verification from the responsible technical, legal or governance reviewer. Do not begin transfer, access, or release. Return to Step 13 when implementation can be established. If material uncertainty remains, select Final Decision Outcome 4 below.
Final Decision: Select and document one outcome Interpretive note: A Neuro-TADT outcome provides structured governance decision support. It does not independently authorise processing, establish formal legal adequacy or replace any required legal, ethics, institutional, repository or regulatory determination.			

Step	Question	Answer	Required action
Outcome 1	Proceed subject to applicable approvals	Select only where the applicable lawful basis, transfer, access or release mechanism, required approvals and authority for the proposed activity have been confirmed, and all required safeguards have been implemented and documented. For a controlled-access pathway, confirm that: all required recipients and subprocessors are identified; the applicable Risk Tier has been assigned; the purpose and access model are defined; the required safeguards can be maintained throughout the proposed pathway; any linkage, AI use, repurposing and onward sharing have been assessed; and all required legal, ethics, institutional, repository and other applicable approvals are in place. For a Public-release pathway, confirm that: the releasing organisation is identified; the repository, hosting platform or distribution channel and any required infrastructure providers are identified; the specific object and version approved for public release are identified; the applicable licence, terms of use or public-access conditions are recorded; the applicable Risk Tier has been assigned; the object has been assessed under the proposed public-	

Step	Question	Answer	Required action
		access conditions, including any required Tool 3 assessment; reasonably foreseeable linkage, AI reuse, redistribution and other downstream Functional Exposure have been assessed; all safeguards that must operate before or at the point of release have been implemented; and all required legal, ethics, institutional, repository and release approvals are in place. Required Action: Record the final approved pathway as Controlled access or Public release. For controlled access, record the approved recipients, purposes, access conditions and supporting approvals. For public release, record the releasing organisation, repository or distribution channel, object and version released, licence or access conditions, publication destination and supporting release approval. Proceed only within the confirmed approvals and conditions. Reassess before any Material Change to the object, purpose, recipient or release conditions, jurisdiction, access arrangement, repository, AI use, linkage or downstream distribution.	

Step	Question	Answer	Required action
Outcome 2	Proceed after supplementary safeguards are implemented	Select where the applicable legal and approval prerequisites are established, but specified safeguards remain to be implemented within the current pathway. Record each outstanding safeguard, responsible party and verification requirement. Withhold transfer, access, or release until implementation is verified. Return to Step 13 and, if all conditions are satisfied, record Outcome 1.	
Outcome 3	Redesign the transfer or access pathway	Select where required safeguards cannot be maintained under the current arrangement, including a proposed Public-release pathway, but a feasible alternative access or release arrangement may provide the required protection. Record why the current pathway is unsuitable and the proposed changes. Do not begin transfer, access, or release through the unsuitable pathway. Repeat this Tool for the redesigned arrangement, updating Tool 1 / Supplementary Table 6 if the changes could affect Functional Exposure or the required tier.	

Step	Question	Answer	Required action
Outcome 4	Do not proceed and obtain specialist review	Select where a required legal basis, mechanism, approval, required controlled-access recipient identity, releasing or hosting organisation, or other material governance issue remains unresolved, or the required protection cannot be maintained. Required Action: Record the reason, required review and responsible person or body. Do not begin the affected transfer, access, or release. Following review, return to the affected step and update all dependent answers. If no acceptable pathway is established, retain this outcome.	

Tool 3 — Derivative and Embedding Governance Decision Tool

Supplementary Table 8

Assesses whether technical transformation (features, embeddings, synthetic data, predictions, trained models) has materially changed functional exposure and whether the tier or safeguards require reassessment. Five outcomes: retain the existing tier; refer for Tier 4; confirm Tier 5; specialist review required; do not proceed in the current form.

Step	Question	Answer	Required action
1	Has the neurodata undergone, or will it undergo, technical transformation; will it be used in an AI or machine-learning system; or may neurodata-derived information persist in a model or computational infrastructure? Examples include feature extraction, dimensionality reduction, embedding generation, predictive modelling, synthetic-data generation or AI-model training. Apply the triggers and exceptions in Annexure 1 §7.2. The Derivative and Embedding Governance Decision Tool need not be completed solely because routine preprocessing occurred without creating a separately governed derivative or materially altering Functional Exposure. It is also not required for a confirmed Tier 1 aggregate or summary-level output where the documented assessment establishes that there is no participant-level record, persistent participant trace, linkage mechanism, material inferential exposure or model-associated computational persistence. This exception does not cover source data, retained intermediate representations or models assessed as separate governance objects; AI or model activities requiring assessment under Tool 2 / Supplementary Table 7 Step 10; unresolved uncertainty; or later changes capable of materially altering Functional Exposure.	No	Record why none of these triggers apply. Retain the tier and safeguards established under Tool 1 / Supplementary Table 6. Record “Tool 3 (Supplementary Table 8) not required for this activity” and return to the referring Tool at its next applicable step. Reassess if the activity or object changes.
1	Has the neurodata undergone, or will it undergo, technical transformation; will it be used in an AI or machine-learning system; or may neurodata-derived information persist in a model or computational infrastructure? Examples include feature extraction, dimensionality reduction, embedding generation, predictive modelling, synthetic-data generation or AI-model training. Apply the triggers and exceptions in Annexure 1 §7.2. The Derivative and Embedding Governance Decision Tool need not be completed solely because routine preprocessing occurred without creating a separately governed derivative or materially altering Functional Exposure. It is also not required for a confirmed Tier 1 aggregate or summary-level output where the documented assessment establishes that there is no participant-level record, persistent participant trace, linkage mechanism, material inferential exposure or model-associated computational persistence. This exception does not cover source data, retained intermediate representations or models assessed as separate governance objects; AI or model activities requiring assessment under Tool 2 / Supplementary Table 7 Step 10; unresolved uncertainty; or later changes capable of materially altering Functional Exposure.	Yes	Record the applicable trigger. If an exception under Annexure 1 §7.2 is established for this particular object and activity, document the exception and return to the referring Tool. Do not apply that exception to AI activities requiring assessment under Tool 2 / Supplementary Table 7 Step 10A or Step 10B, as applicable. Otherwise, continue to Step 2.

Step	Question	Answer	Required action
1	Has the neurodata undergone, or will it undergo, technical transformation; will it be used in an AI or machine-learning system; or may neurodata-derived information persist in a model or computational infrastructure? Examples include feature extraction, dimensionality reduction, embedding generation, predictive modelling, synthetic-data generation or AI-model training. Apply the triggers and exceptions in Annexure 1 §7.2. The Derivative and Embedding Governance Decision Tool need not be completed solely because routine preprocessing occurred without creating a separately governed derivative or materially altering Functional Exposure. It is also not required for a confirmed Tier 1 aggregate or summary-level output where the documented assessment establishes that there is no participant-level record, persistent participant trace, linkage mechanism, material inferential exposure or model-associated computational persistence. This exception does not cover source data, retained intermediate representations or models assessed as separate governance objects; AI or model activities requiring assessment under Tool 2 / Supplementary Table 7 Step 10; unresolved uncertainty; or later changes capable of materially altering Functional Exposure.	Unsure	Obtain clarification of the processing, AI activity or possible computational persistence. Do not mark the activity as exempt while applicability remains uncertain. Pause this assessment and return to Step 1 when the answer is established.
2	What form of transformation has occurred or is proposed? Examples include feature vectors, embeddings, connectivity measures, reconstructed signals, classifiers, predictions, synthetic neurodata, trained models, model gradients, or other derived representations.	One or more forms or activities identified	Record the transformation or activity, purpose, source neurodata, technical method and resulting or assessed artefact. Identify its version and any retained intermediate representations requiring separate assessment. Continue to Step 3.
2	What form of transformation has occurred or is proposed? Examples include feature vectors, embeddings, connectivity measures, reconstructed signals, classifiers, predictions, synthetic neurodata, trained models, model gradients, or other derived representations.	Other, but sufficiently described	Describe the activity and artefact in technical terms sufficient to assess exposure, even if no listed category fits. Continue to Step 3.
2	What form of transformation has occurred or is proposed? Examples include feature vectors, embeddings, connectivity measures, reconstructed signals, classifiers, predictions, synthetic neurodata, trained models, model gradients, or other derived representations.	Unclear	Obtain a description from the technical lead, recipient or provider. Pause progression until the activity and assessed object can be identified. Return to Step 2. If essential information cannot be obtained, select Final Decision Outcome 4 below.
3	Can the resulting artefact circulate, be accessed, queried or be deployed independently of the source neurodata? Example: a trained model, embedding repository or predictive classifier is shared without distributing the original EEG or MRI dataset.	Yes	Record intended controlled-access recipients or, for public release, the releasing organisation, repository/distribution channel, access mechanism and deployment environment. Identify the controls needed when the artefact is used without the source data. Continue to Step 4. Independent circulation does not itself determine a tier.
3	Can the resulting artefact circulate, be accessed, queried or be deployed independently of the source neurodata? Example: a trained model, embedding repository or predictive classifier is shared without distributing the original EEG or MRI dataset.	No	Record how the artefact remains connected to, or controlled with, the source neurodata. Continue to Step 4.

Step	Question	Answer	Required action
3	Can the resulting artefact circulate, be accessed, queried or be deployed independently of the source neurodata? Example: a trained model, embedding repository or predictive classifier is shared without distributing the original EEG or MRI dataset.	Unsure	Record independent circulation as possible pending technical confirmation. Request confirmation of the architecture and access arrangements. Continue to Step 4, retaining the unresolved issue for the Final Decision.
4	Can the artefact reasonably identify or trace an individual, whether directly, through participant linkage or together with additional information reasonably available to the intended controlled-access recipient or, where public release is proposed, in the reasonably foreseeable public-access environment? Examples include reconstructing features of a participant's neural activity, linking an embedding to a participant record or distinguishing whether a participant contributed to the source dataset.	Yes	Record the identification or tracing mechanism and supporting evidence. Flag the finding for classification under Tool 1 / Supplementary Table 6 and retain applicable identification and linkage safeguards. Continue to Step 5; do not determine the final tier from this answer alone.
4	Can the artefact reasonably identify or trace an individual, whether directly, through participant linkage or together with additional information reasonably available to the intended controlled-access recipient or, where public release is proposed, in the reasonably foreseeable public-access environment? Examples include reconstructing features of a participant's neural activity, linking an embedding to a participant record or distinguishing whether a participant contributed to the source dataset.	No	Record the supporting evidence and the additional information considered. Continue to Step 5. Absence of identification does not establish absence of inference or computational persistence.
4	Can the artefact reasonably identify or trace an individual, whether directly, through participant linkage or together with additional information reasonably available to the intended controlled-access recipient or, where public release is proposed, in the reasonably foreseeable public-access environment? Examples include reconstructing features of a participant's neural activity, linking an embedding to a participant record or distinguishing whether a participant contributed to the source dataset.	Unknown	Record the unresolved identification or linkage question and request technical assessment. Apply the relevant provisional safeguards under Tool 1 / Supplementary Table 6. Continue to Step 5 and retain the uncertainty for the Final Decision.
5	Can the artefact reveal, predict, reconstruct or profile neurological, cognitive, emotional or behavioural characteristics of an individual or group, even without directly identifying a participant? Distinguish ordinary aggregate description from material group-level Functional Exposure under Annexure 1 §2.1. Example: an EEG-derived embedding predicts cognitive decline, or a model output classifies stress, attention or neurological status.	Yes	Record the capability, affected individuals or group, supporting evidence and relevant access conditions. Record a candidate Tier 4 condition and apply Tier 4 safeguards provisionally, retaining any higher applicable safeguards. Continue to Step 6.
5	Can the artefact reveal, predict, reconstruct or profile neurological, cognitive, emotional or behavioural characteristics of an individual or group, even without directly identifying a participant? Distinguish ordinary aggregate description from material group-level Functional Exposure under Annexure 1 §2.1. Example: an EEG-derived embedding predicts cognitive decline, or a model output classifies stress, attention or neurological status.	No	Record the evidence supporting this conclusion and its limitations. Continue to Step 6.

Step	Question	Answer	Required action
5	Can the artefact reveal, predict, reconstruct or profile neurological, cognitive, emotional or behavioural characteristics of an individual or group, even without directly identifying a participant? Distinguish ordinary aggregate description from material group-level Functional Exposure under Annexure 1 §2.1. Example: an EEG-derived embedding predicts cognitive decline, or a model output classifies stress, attention or neurological status.	Unknown	Record the unresolved inferential, reconstructive or profiling capability. Apply provisional Tier 4 safeguards, retaining any higher applicable safeguards. Request the technical assessment needed to resolve the question. Continue to Step 6.
6	Has neural information become, or may it reasonably have become, computationally persistent within a model, shared embedding, model gradient, synthetic-data generator, or other infrastructure in a manner capable of supporting continuing inference, reconstruction, extraction or profiling? Model incorporation alone is not sufficient; consider whether information derived from the neurodata may persist and create continuing functional exposure.	Yes	Record a candidate Tier 5 condition and the evidence of continuing functional exposure. Apply Tier 5 safeguards provisionally pending completion of the assessment. Continue to Step 7. Confirm Tier 5 only if the completed assessment meets Outcome 3.
6	Has neural information become, or may it reasonably have become, computationally persistent within a model, shared embedding, model gradient, synthetic-data generator, or other infrastructure in a manner capable of supporting continuing inference, reconstruction, extraction or profiling? Model incorporation alone is not sufficient; consider whether information derived from the neurodata may persist and create continuing functional exposure.	No	Record the technical evidence supporting the absence of continuing computational exposure and its limitations. Do not assign Tier 5 solely because model incorporation occurred. Continue to Step 7.
6	Has neural information become, or may it reasonably have become, computationally persistent within a model, shared embedding, model gradient, synthetic-data generator, or other infrastructure in a manner capable of supporting continuing inference, reconstruction, extraction or profiling? Model incorporation alone is not sufficient; consider whether information derived from the neurodata may persist and create continuing functional exposure.	Unknown	Record provisional Tier 5 and the unresolved persistence or exposure question. Apply Tier 5 safeguards provisionally and request specialist assessment. Continue to Step 7. If material uncertainty remains at the Final Decision, select Outcome 4 rather than confirming Tier 5.
7	Has the artefact or model been evaluated, where technically relevant, for memorisation, training-data extraction, model inversion, membership inference or other forms of information leakage? Example: testing assesses whether prompts, queries or attacks can recover participant-related neural information or determine whether particular records contributed to model training.	Yes—material exposure was identified	Record the methods, findings, artefact version and tested access conditions. Update the findings at Steps 4–6 as indicated by the evidence. Record a candidate Tier 5 condition where leakage demonstrates continuing model-associated or computationally persistent exposure. Continue to Step 8.
7	Has the artefact or model been evaluated, where technically relevant, for memorisation, training-data extraction, model inversion, membership inference or other forms of information leakage? Example: testing assesses whether prompts, queries or attacks can recover participant-related neural information or determine whether particular records contributed to model training.	Yes—no material exposure was identified	Record the testing scope, methods, limitations, version and access conditions. Do not treat the result as proof of absence of exposure beyond those conditions or automatically remove an earlier finding. Continue to Step 8.

Step	Question	Answer	Required action
7	Has the artefact or model been evaluated, where technically relevant, for memorisation, training-data extraction, model inversion, membership inference or other forms of information leakage? Example: testing assesses whether prompts, queries or attacks can recover participant-related neural information or determine whether particular records contributed to model training.	Not tested or unknown	Obtain a technical assessment of whether testing is relevant, proportionate and feasible. Record required testing or alternative evidence, the responsible person and any remaining uncertainty. Retain applicable provisional safeguards and continue to Step 8. If material exposure cannot be assessed reliably, select Outcome 4 at the Final Decision.
7	Has the artefact or model been evaluated, where technically relevant, for memorisation, training-data extraction, model inversion, membership inference or other forms of information leakage? Example: testing assesses whether prompts, queries or attacks can recover participant-related neural information or determine whether particular records contributed to model training.	Not technically applicable	Record the technical justification and responsible reviewer. Continue to Step 8. This answer does not resolve other exposure findings.
8	Are the provenance and transformation history of the artefact sufficiently documented? Consider the source neurodata, lawful provenance, preprocessing, training purpose, model architecture, training or fine-tuning procedure, model version, vendors, cloud providers, sub-processors and subsequent modifications.	Yes	Preserve or reference the provenance and version records. Continue to Step 9.
8	Are the provenance and transformation history of the artefact sufficiently documented? Consider the source neurodata, lawful provenance, preprocessing, training purpose, model architecture, training or fine-tuning procedure, model version, vendors, cloud providers, sub-processors and subsequent modifications.	No	Identify the missing records and request them from the responsible parties. Record whether each gap affects the assessment or proposed use. Continue to Step 9, carrying unresolved gaps to the Final Decision. Do not approve affected sharing or deployment while essential provenance remains unresolved.
8	Are the provenance and transformation history of the artefact sufficiently documented? Consider the source neurodata, lawful provenance, preprocessing, training purpose, model architecture, training or fine-tuning procedure, model version, vendors, cloud providers, sub-processors and subsequent modifications.	Unknown	Obtain information from the technical team, recipient, vendor or provider. Record the outstanding provenance questions and responsible person. Continue to Step 9, carrying unresolved gaps to the Final Decision.
9	Will the proposed access or deployment conditions materially affect functional exposure? Consider downloadable copies, public release, API or query access, external hosting, fine-tuning, transfer learning, model merging, distillation, commercial deployment or access by additional recipients.	Yes	Record the conditions, their effect on exposure and the safeguards required. Revisit Steps 4–7 if those conditions change the evidence supporting an answer. Where an external controlled transfer or access pathway is involved, mark Tool 2 / Supplementary Table 7 for completion or update. Where public release is proposed, mark Tool 2 / Supplementary Table 7 Public-release pathway for completion or update. Continue to Step 9A.
9	Will the proposed access or deployment conditions materially affect functional exposure? Consider downloadable copies, public release, API or query access, external hosting, fine-tuning, transfer learning, model merging, distillation, commercial deployment or access by additional recipients.	No	Record the assessed access and deployment conditions and why they do not materially change exposure. Continue to Step 9A.

Step	Question	Answer	Required action
9	Will the proposed access or deployment conditions materially affect functional exposure? Consider downloadable copies, public release, API or query access, external hosting, fine-tuning, transfer learning, model merging, distillation, commercial deployment or access by additional recipients.	Unknown	Obtain clarification of intended access, hosting and deployment. Do not approve the unresolved arrangement. Return to Step 9 when the conditions are established. If material uncertainty remains, select Final Decision Outcome 4.
9A	Have the proposed outputs, including features, embeddings, synthetic outputs, and model weights, been assessed against applicable authorisation and release conditions?	Yes	Record the assessment, applicable conditions, responsible reviewer and approval status. Mark outstanding approvals as pending and withhold release until required approvals are obtained. Continue to Step 10.
9A	Have the proposed outputs, including features, embeddings, synthetic outputs, and model weights, been assessed against applicable authorisation and release conditions?	No	Identify the required output or release assessment and responsible reviewer. Withhold release pending that assessment and any required approval. Continue to Step 10 with the requirement recorded as outstanding.
9A	Have the proposed outputs, including features, embeddings, synthetic outputs, and model weights, been assessed against applicable authorisation and release conditions?	Uncertain	Obtain confirmation of the applicable conditions and whether they have been assessed. Withhold release while unresolved. Continue to Step 10, retaining the uncertainty for the Final Decision.
10	Are retention, withdrawal, deletion, decommissioning and, where technically feasible, model-unlearning procedures documented and capable of implementation? Example: the project specifies how model versions and embeddings will be retained, how access will be terminated, whether derived artefacts can be deleted and what alternative controls will apply if reliable unlearning is not technically feasible.	Yes	Record the applicable triggers, responsible parties, procedures, timeframes and verification requirements. Assess the effects of EHDS opt-out, consent withdrawal, erasure requests and contractual termination separately, including their implications for previously authorised processing. Continue to Step 11.
10	Are retention, withdrawal, deletion, decommissioning and, where technically feasible, model-unlearning procedures documented and capable of implementation? Example: the project specifies how model versions and embeddings will be retained, how access will be terminated, whether derived artefacts can be deleted and what alternative controls will apply if reliable unlearning is not technically feasible.	Partly	Record unavailable controls and their consequences. Obtain review of proportionate alternatives, such as access withdrawal, version retirement, decommissioning, output restrictions or prohibition of further training. Record accepted alternatives, outstanding implementation actions and responsible parties. Continue to Step 11. Do not treat a proposed alternative as an implemented safeguard.
10	Are retention, withdrawal, deletion, decommissioning and, where technically feasible, model-unlearning procedures documented and capable of implementation? Example: the project specifies how model versions and embeddings will be retained, how access will be terminated, whether derived artefacts can be deleted and what alternative controls will apply if reliable unlearning is not technically feasible.	No or unknown	Obtain specialist technical and governance review of the limitations and possible alternative safeguards. Withhold external sharing or deployment pending that review. Continue to Step 11 with the review requirement recorded as outstanding.

Step	Question	Answer	Required action
11	Can the identified functional exposure be managed through proportionate legal, institutional, repository, technical and contractual safeguards throughout the proposed use and deployment? Example: An fMRI-derived predictive model remains capable of neurological inference, but access is limited to approved researchers within a secure environment; queries and outputs are monitored; unauthorised profiling, retraining and onward sharing are contractually prohibited; and audit, incident-response, retention and model-decommissioning procedures are documented and enforceable.	Yes	Record the safeguards and supporting assessment. Proceed to the Final Decision. Any unresolved issue from an earlier step remains applicable.
11	Can the identified functional exposure be managed through proportionate legal, institutional, repository, technical and contractual safeguards throughout the proposed use and deployment? Example: An fMRI-derived predictive model remains capable of neurological inference, but access is limited to approved researchers within a secure environment; queries and outputs are monitored; unauthorised profiling, retraining and onward sharing are contractually prohibited; and audit, incident-response, retention and model-decommissioning procedures are documented and enforceable.	Only after additional safeguards	Record each safeguard, responsible party and implementation evidence required. Proceed to the Final Decision, identifying any suitable tier outcome separately from outstanding implementation conditions. Do not begin the affected activity until the required safeguards are implemented and verified.
11	Can the identified functional exposure be managed through proportionate legal, institutional, repository, technical and contractual safeguards throughout the proposed use and deployment? Example: An fMRI-derived predictive model remains capable of neurological inference, but access is limited to approved researchers within a secure environment; queries and outputs are monitored; unauthorised profiling, retraining and onward sharing are contractually prohibited; and audit, incident-response, retention and model-decommissioning procedures are documented and enforceable.	Unsure	Record the unresolved governance question and required review. Select Final Decision Outcome 4.
11	Can the identified functional exposure be managed through proportionate legal, institutional, repository, technical and contractual safeguards throughout the proposed use and deployment? Example: An fMRI-derived predictive model remains capable of neurological inference, but access is limited to approved researchers within a secure environment; queries and outputs are monitored; unauthorised profiling, retraining and onward sharing are contractually prohibited; and audit, incident-response, retention and model-decommissioning procedures are documented and enforceable.	No	Record why the exposure cannot be managed under the proposed arrangement. Select Final Decision Outcome 5.
Final Decision: Select and document one outcome Reassessment and implementation: If the assessment changes the provisional tier, return to the Neurodata Governance Decision Tool (Supplementary Table 6). If it affects an existing or proposed transfer or access pathway, repeat the Neurodata Transfer and Access Decision Tool (Supplementary Table 7). The resulting governance determinations should then be implemented through the MDTAA Clause Selection Tool (Supplementary Table 9) where contractual governance is required.			

Step	Question	Answer	Required action
Outcome 1	Retain the existing Tier	Select where documented evidence supports the existing classification of the assessed artefact, no new or increased exposure requires a higher tier, and the applicable safeguards remain suitable. Record the tier, supporting evidence, limitations and any outstanding implementation conditions. Do not convert a candidate or provisional tier into a confirmed tier through this outcome. Resolve material classification uncertainty through Outcome 4. If returning to an unfinished Tool 1 / Supplementary Table 6 assessment, resume at its next applicable step and complete Steps 5 and 6. Complete or update Tool 2 / Supplementary Table 7 where an external pathway is involved.	

Step	Question	Answer	Required action
Outcome 2	Refer for Tier 4 classification / re-assessment	Select where a derived artefact supports identification, tracing or material inference, reconstruction or profiling consistent with Table 6 Step 4, and the assessment provides sufficient evidence that Tier 5 criteria are not met. Record the evidence and apply Tier 4 safeguards provisionally. Return to Tool 1 / Supplementary Table 6 at Step 3, follow the Tier 4 pathway and complete Steps 5 and 6. Document resolution of any candidate or provisional Tier 5 finding addressed by this assessment. Absence of evidence alone does not resolve material uncertainty. Do not automatically lower a previously confirmed Tier 5: apply the documented reassessment and approval requirements in Annexure 3 §10.3. Complete or update Tool 2 / Supplementary Table 7 using the resulting classification and safeguards where an external pathway is involved.	

Step	Question	Answer	Required action
Outcome 3	Confirm Tier 5 classification	Select where the completed assessment demonstrates continuing functional exposure through neural information persisting within a model or computational infrastructure. Model incorporation alone is insufficient. Record the evidence and confirm Tier 5 finding. Return to Tool 1 / Supplementary Table 6 at Step 2B, record Tier 5 as confirmed and continue from Step 3, including Steps 5 and 6, to identify cumulative safeguards. Reference this completed Tool 3 / Supplementary Table 8 assessment; do not restart it solely because Tool 1 / Supplementary Table 6 refers to it. Complete or update Tool 2 / Supplementary Table 7 where an external pathway is involved.	

Step	Question	Answer	Required action
Outcome 4	Specialist review required	Select where material questions about exposure, persistence, testing, provenance, authorisation conditions, deployment or lifecycle controls remain unresolved. Record each unresolved question, required evidence and responsible reviewer. Retain the applicable protective provisional tier and safeguards. Where continuing computational exposure remains materially uncertain, retain provisional Tier 5 safeguards. Do not begin the activity that depends on resolution of the outstanding issue. Following review, return to the affected step, update dependent answers and reconsider the Final Decision.	

Step	Question	Answer	Required action
Outcome 5	Do not proceed in the current form	Select where exposure cannot be managed proportionately, essential provenance or oversight cannot be obtained, required lifecycle controls or acceptable alternatives cannot be implemented, or the proposed activity cannot satisfy applicable conditions. Record the reasons and retain the assessment and established tier findings. Do not commence or continue the affected activity in its assessed form. If the artefact, model, access arrangement or purpose is redesigned, repeat the affected assessments before proceeding.	

Tool 4 — MDTAA Clause Selection Tool

Supplementary Table 9

Maps the outcomes of Tools 1–3 to the modules of the Modular Neurodata Transfer and Access Agreement. Module selection does not establish lawfulness or enforceability.

Step	Scientist-facing question	If YES	If NO
1. Baseline governance module	Is the MDTAA being used to govern the processing, access, transfer or reuse of neurodata or a governed derivative artefact? Example: A university intends to provide an external collaborator with controlled access to coded EEG recordings under an MDTAA.	Activate the Baseline Governance Module. Identify the parties, assessed objects and activities governed by the arrangement. Continue to Step 2 (Articles 3–7, 9–10 and 14–17; Schedules A and B; Annexure 4, section 5.1.)	Record “MDTAA Clause Selection Tool not applicable to this arrangement”. Identify whether another agreement, repository term, public licence or governance mechanism applies. Where public release is proposed, complete Step 1A before ending this Tool. Otherwise, end this Tool.

Step	Scientist-facing question	If YES	If NO
1A. Public Release and MDTAA Applicability	Is the proposed public release governed through repository terms, a public licence or another release instrument rather than through an MDTAA with unidentified downstream public users? Example: A research institution deposits an approved neurodata-derived object in an open repository under specified public-use terms, without entering into separate agreements with individual downloaders.	Record the repository terms, public licence or other release instrument governing the public release. Confirm that the applicable assessments under Tools 1–3 / Supplementary Tables 6–8 have been completed for the object and Public-release pathway. Record: 'MDTAA not used for unidentified public downstream users.' Determine whether an MDTAA is separately required with a known repository operator, hosting provider, platform or other institutional party. If no separate MDTAA is required, record the applicable public-release governance mechanism and end this Tool. If a separate MDTAA is required, return to Step 1 for that identified arrangement, answer YES, activate the Baseline Governance Module and continue to Step 2.	Record that public release is not governed solely through repository terms, a public licence or another non-MDTAA release instrument. Return to Step 1 for that identified arrangement, answer YES, activate the Baseline Governance Module, and then continue to Step 2.
2. Cross-Border Transfer Module	Does the arrangement involve international transfer, storage in another jurisdiction or remote access from another legal jurisdiction? Example: MRI data collected in South Africa will remain on a South African server but will be accessed remotely by researchers in Germany.	Activate the Cross-Border Transfer Module. Record the originating, receiving, hosting and remotely accessing jurisdictions and incorporate the applicable requirements identified by Tool 2 / Supplementary Table 7. Continue to Step 3. (Articles 12, 13 and 13A; Annexure 2, Schedule C, where applicable).	Do not activate this module on the basis of this step. Continue to Step 3.

Step	Scientist-facing question	If YES	If NO
3. Supplementary Safeguards Module	Did the Neuro-TADT identify supplementary safeguards as a condition for proceeding? Examples include enhanced encryption, controlled access, local storage, additional oversight or restrictions on government access.	Activate the Supplementary Safeguards Module. Specify each safeguard identified by Tool 2 / Supplementary Table 7, the responsible party and the evidence required to verify implementation. Continue to Step 4. (Article 13A; Schedule C; relevant Annexures as identified by the Neuro-TADT).	Retain the baseline safeguards and all other safeguards required by the preceding assessments. Continue to Step 4.
4. Enhanced Neurodata Protection Module	Does Tool 1 / Supplementary Table 6 assessment require Tier 3, Tier 4 or Tier 5 safeguards, whether under a confirmed classification or provisionally pending further assessment? Example: Raw intracranial recordings containing persistent participant and device identifiers have been classified as Tier 3 and require enhanced access, security and accountability controls.	Activate the Enhanced Neurodata Protection Module. Incorporate the safeguards required for the applicable Tier 3, Tier 4 or Tier 5 classification, retaining safeguards associated with other conditions that remain present. Mark the selection as provisional where the classification remains provisional. Continue to Step 5. (Articles 10A and 11A; Annexure 1; Annexure 5; Schedule B-D, where applicable).	Retain the safeguards required for the applicable tier and any separately identified conditions. Continue to Step 5.

Step	Scientist-facing question	If YES	If NO
5. Derivative Neurodata Module	Does the arrangement involve features, embeddings, connectivity measures, predictions, reconstructed signals, synthetic neurodata or other transformed neural representations? Example: The recipient will generate and retain fMRI-derived embeddings and functional-connectivity measures rather than receiving only the original imaging dataset.	Activate the Derivative Neurodata Module. Specify the governed artefacts, permitted transformations and uses, access conditions and prohibited activities. Incorporate applicable findings from Tool 3 / Supplementary Table 8 or reference the documented exception under Annexure 1 §7.2. Continue to Step 6. (Article 10B; Annexure 3; Article 11B where deletion or unlearning is implicated.)	Do not activate this module on the basis of this step. Continue to Step 6.
6. AI and Model Governance Module	Will neurodata or derivative artefacts be used to train, fine-tune, validate, benchmark, query or deploy an AI or machine-learning system? Example: An external research team will use EEG recordings to fine-tune and validate a machine-learning model for predicting cognitive impairment.	Activate the AI and Model Governance Module. Specify authorised AI activities, systems or models, technical environments, access restrictions and oversight requirements. Incorporate applicable conditions from Tools 2 and 3 / Supplementary Tables 7 and 8. Module selection does not itself establish Tier 5. Continue to Step 7. (Article 6A; relevant provisions in Schedule D where applicable).	Do not activate this module on the basis of this step. Continue to Step 7.

Step	Scientist-facing question	If YES	If NO
7. Controlled Access, Repository and Infrastructure Module	Will access or processing occur through a repository, secure enclave, trusted research environment, federated system, cloud platform, vendor environment or other controlled infrastructure? Example: Researchers will analyse participant-level MRI data inside a trusted research environment that permits approved queries but prohibits downloading the underlying data.	Activate the Controlled Access, Repository and Infrastructure Module. Specify the infrastructure, access model, administrators, providers, security controls and output or download restrictions. Continue to Step 7A. (Articles 6B, 10A, 10B, and 13A; Annexures 2 and 5; Schedules C and D, where applicable.)	Do not activate this module on the basis of this step. Continue to Step 7A.
7A. Statutory Access Conditions	Does the arrangement operate under an EHDS permit or another statutory authorisation?	Record the statutory authorisation, its status and its applicable conditions in Schedules C and D, as relevant. Identify the selected provisions that implement each condition; use Step 19 for any additional provisions required. Record any pending authorisation or unresolved condition as outstanding. Continue to Step 8.	Reference the determination made under Tool 2 / Supplementary Table 7 Step 7A that no such authorisation is required. Continue to Step 8.
8. Onward Transfer and Sub-Processor Module	May the recipient appoint sub-processors or provide the neurodata, derivatives or model-associated artefacts to additional recipients? Example: The receiving university proposes to use a cloud provider for processing and to share derived embeddings with another consortium partner.	Activate the Onward Transfer and Subprocessor Module. Specify permitted recipients or recipient categories, purposes, approval conditions and safeguards that must continue throughout the onward arrangement. Distinguish existing permission from permission requiring further approval and check consistency with upstream conditions. Continue to Step 9. (Article 8; SCC Annex III where applicable).	Record that onward transfer or appointment of sub-processors is not permitted under the assessed arrangement. Continue to Step 9 to specify the applicable prohibition and any approval procedure.

Step	Scientist-facing question	If YES	If NO
9. No Onward Transfer Module	Must onward transfer, third-party access, subcontracting, cloud replication or redistribution be prohibited unless prior approval is obtained? Example: The recipient may analyse the EEG data internally but may not upload it to another repository, engage a new cloud vendor or share it with another collaborator without prior written approval.	Activate the No Onward Transfer Module. Specify the prohibited activities and any expressly permitted exceptions or prior-approval procedure. Reconcile these restrictions with Step 8 so that permitted onward activities and prohibited activities are clearly distinguished. Continue to Step 10. (Article 8).	Confirm that any permitted onward activities and their conditions have been addressed at Step 8. If Step 8 was also answered “No”, clarify the onward-sharing position and revise Step 8 or Step 9 before continuing. Continue to Step 10.
10. Commercial Use and Intellectual Property Module	Does the arrangement involve a commercial partner, product development, licensing, intellectual-property generation or another anticipated commercial use? Example: A medical-device company will use transferred neurodata to develop and commercialise an algorithm for detecting neurological deterioration.	Activate the Commercial Use and Intellectual Property Module. Specify permitted commercial activities, if any, together with ownership, licensing, publication and benefit-allocation conditions. Do not treat the involvement of a commercial partner or the creation of intellectual property as permission for commercial use. Continue to Step 11. (Article 3A; Schedule B where applicable).	Do not activate this module on the basis of this step. Continue to Step 11.

Step	Scientist-facing question	If YES	If NO
11. Research Use Only Module	Must use of the neurodata and resulting artefacts be restricted to the approved non-commercial research purposes? Example: A university consortium may use the data only for the approved academic study and may not use them for product development, commercial licensing, employment screening or insurance assessment.	Activate the Research Use Only Module. Specify the approved non-commercial research purposes, authorised users and prohibited uses. Check consistency with Step 10. Where both modules apply, ensure that intellectual-property or commercial-partner provisions do not authorise prohibited commercial use. Continue to Step 12. (Articles 3–6 and 10; incorporated SCC purpose-limitation provisions; Schedules A and B; Schedules C and D, where applicable.)	Do not activate the Research Use Only Module. Specify the other authorised purposes and applicable restrictions; this answer does not permit unrestricted use. Continue to Step 12.

Step	Scientist-facing question	If YES	If NO
12. Dataset Linkage Module	Will the neurodata be linked with genomic, clinical, behavioural, wearable, consumer, administrative, public-register or other datasets? Example: Pseudonymised EEG recordings will be linked with genomic variants and electronic health records to investigate predictors of neurodegenerative disease.	Activate the Dataset Linkage Module. Specify authorised datasets, linkage purposes, responsible parties, reassessment requirements and restrictions on further linkage. Incorporate the classification and pathway requirements identified through Tool 2 / Supplementary Table 7 Steps 9A and 9B, as applicable, and the resulting Tool 1 / Supplementary Table 6 assessment. Continue to Step 13. (Article 4.2(b); Articles 10A and 10B; Annexure 1, section 6.1(a); Annexure 2, sections 7.1(j) and 8.1(f); Annexure 3, sections 7(e) and 10.1(e); Schedule B, Parts B–D and I; Schedule C, Parts H–I and K; Schedule D, Part H, where applicable.)	Record that dataset linkage is outside the assessed arrangement and requires reassessment before introduction. Continue to Step 13.

Step	Scientist-facing question	If YES	If NO
13. Permitted Inference and Prohibited Use Module	Can the neurodata or governed artefact support sensitive inference, reconstruction or profiling, or are particular inferences or uses required to be prohibited? Examples include cognitive profiling, emotional inference, reconstruction of neural activity, employment screening or insurance use. Example: The approved project permits inference concerning cognitive fatigue but prohibits emotional profiling, employment screening, insurance assessment and reconstruction of unrelated mental states.	Activate the Permitted Inference and Prohibited Use Module. Specify authorised analyses, prohibited inferences and decisions, and output-review requirements. Distinguish technically possible activities from activities that are authorised. Continue to Step 14. (Article 3A; Articles 6A, 10.6, 10A and 10B; Annexure 1, sections 2–4; Annexure 3, sections 7–8 and 12; Schedule B, Parts C and I; Schedule C, Parts H–I; Schedule D, Parts D–E, where applicable.)	Retain baseline purpose limitations and all existing use restrictions. Continue to Step 14.
14. Enhanced Audit and Monitoring Module	Do the assigned tier, Neuro-TADT outcome, AI use, recipient environment or identified uncertainty require enhanced audit, monitoring or incident reporting? Example: Access to a Tier 5 model must be logged continuously, with quarterly access reviews, documented model-version changes and immediate reporting of attempted extraction or inversion attacks.	Activate the Enhanced Audit and Monitoring Module. Specify logging, reporting, inspection, testing and audit requirements, including frequency and responsible parties. Continue to Step 15. (Articles 6, 6A.9, 13A and 15; Annexure 2, sections 6–8; Annexure 3, sections 7–10; Annexure 5; Schedule C, Parts I and K; Schedule D, Parts F and H, where applicable.)	Retain baseline audit, monitoring and incident-reporting obligations. Continue to Step 15.

Step	Scientist-facing question	If YES	If NO
15. Return, Deletion and Certification Module	Must neurodata, copies or derivative artefacts be returned, deleted or certified as destroyed at the end of the project, following withdrawal or after another specified event? Example: At project completion, the recipient must delete all local EEG copies and derived feature files and provide written certification of deletion within 30 days.	Activate the Return, Deletion and Certification Module. Specify the objects and copies covered, applicable triggers, timeframes, responsible parties, verification evidence and permitted archival exceptions. Continue to Step 16 to address any retained model or persistent artefact separately. (Article 6 and incorporated SCC Clause 8.5; Articles 10, 11B and 15; Annexure 3, sections 7–10; Annexure 5; Schedule B, Parts D and I; Schedule C, Parts I and K; Schedule D, Parts G–H, where applicable.)	Record the authorised retention period, purpose and applicable conditions. Do not treat this answer as permission for indefinite retention or as displacing mandatory deletion obligations. Continue to Step 16.
16. Persistent Artefact, Model Retention and Unlearning Module	Does the arrangement involve a model, embedding or computational artefact that may persist after the source neurodata are deleted, returned or withdrawn? Example: A predictive model trained on participant neurodata will remain operational after the source dataset is deleted, requiring documented model-retention, version-retirement, decommissioning and technically feasible unlearning procedures.	Activate the Persistent Artefact, Model Retention and Unlearning Module. Specify retention, version retirement, access withdrawal, decommissioning, deletion and technically feasible unlearning procedures, including approved alternatives where necessary. Reconcile these provisions with Step 15 and the findings of Table 8. Continue to Step 17. (Articles 6A, 10B and 11B; Annexure 1, section 3.5; Annexure 3, sections 8–10; Schedule B, Parts H–I; Schedule C, Parts G–I and K; Schedule D, Parts E, G and H, where applicable.)	Do not activate this module on the basis of this step. Continue to Step 17.

Step	Scientist-facing question	If YES	If NO
17. Community, Collective and Indigenous Data Governance Module	Does the project involve an Indigenous community, defined population, patient group or other collective with relevant governance authority, cultural interests or community-approved conditions? Example: Neuroimaging data were collected from an Indigenous community whose recognised governance body requires continuing approval of secondary uses and representation on the data-access committee.	Activate the Community, Collective and Indigenous Data Governance Module. Specify the relevant governance body or representatives, consultation requirements, permissions, access conditions and continuing governance arrangements. Continue to Step 18. (Article 3A; Articles 5A and 9, where applicable; Schedule A, Parts A–D; Schedule B, Part I; Schedule D, Part B, where a Data Access Committee exercises continuing authority; Annexure 4, section 5.17.)	Do not activate this module on the basis of this step. Continue to Step 18.
18. Benefit Sharing and Capacity Development Module	Does the arrangement require benefit-sharing, local analytical access, training, infrastructure support, co-authorship, technology transfer or other capacity-development commitments? Example: An international collaborator receiving neurodata from a lower-resourced institution must provide local researchers with analytical training, access to computing infrastructure, opportunities for co-authorship and participation in downstream model development.	Activate the Benefit Sharing and Capacity Development Module. Specify the commitments, beneficiaries, responsible parties, timeframes and evidence of fulfilment. Continue to Step 19. (Article 3A; Schedule A, Parts A–B; Schedule B, Part I; Annexure 4, sections 5.10, 5.17 and 5.18, as applicable.)	Do not activate this module on the basis of this step. Continue to Step 19.

Step	Scientist-facing question	If YES	If NO
19. Optional Project-Specific Module	Are additional jurisdictional, institutional, funder, community or project-specific requirements not addressed adequately by the preceding modules? Examples include export controls, device regulation, cybersecurity certification, publication review or specialised funder conditions. Example: A brain–computer interface project must comply with medical-device requirements, cybersecurity certification conditions and a funder obligation requiring public release of specified aggregate findings.	Activate the Optional Project-Specific Module. Specify requirements not adequately addressed by the other selected modules, including any outstanding implementation provisions identified at Step 7A. Identify the source of each requirement and how it relates to the other MDTAA provisions. Continue to Step 20. (Articles 4–5 and 18; Schedules A–D; relevant Annexures and SCC Annexes I–III, as applicable; Annexure 4, section 5.19.)	Do not activate this module. Continue to Step 20.
20. Contractual Coordination and Precedence Module	Will the MDTAA operate alongside other legal or governance instruments? Examples include Standard Contractual Clauses, a Data Use Agreement, repository terms, institutional agreements, cloud contracts or funder conditions. Example: The transfer is governed simultaneously by the MDTAA, European Union Standard Contractual Clauses, a repository-access agreement, an institutional Data Use Agreement and the recipient's cloud-services contract.	Activate the Contractual Coordination and Precedence Module. Identify the other governing instruments, applicable mandatory requirements and the procedure for resolving inconsistencies. Record relevant expiry or termination dates and surviving permissions or obligations. Refer proposed retention, reuse, onward transfer or model persistence beyond those dates for review where required; do not presume that expiry automatically ends all downstream permissions or obligations. Proceed to Final Decision and Implementation. (Articles 3B, 18 and 19; Schedules A–D; SCC Annexes I–III, where incorporated; Annexure 4, sections 2.7 and 5.20.)	Record the basis for concluding that no additional governing instrument applies. Confirm that the MDTAA remains consistent with applicable mandatory law and institutional requirements. If another governing instrument is identified, revise this answer to "Yes". Proceed to Final Decision and Implementation.

Step	Scientist-facing question	If YES	If NO
Final Decision and Implementation: For arrangements proceeding under the MDTAA, after completing Steps 1–20. Interpretive note: Selection of an MDTAA module does not establish that the underlying processing or transfer is lawful or that the resulting agreement is enforceable in every jurisdiction. Applicable mandatory law and authorised legal, regulatory, ethics, institutional and repository determinations continue to govern.			
1. Compile and record	Compile the Baseline Governance Module and all additional modules selected. Record each selection, its trigger, the responsible party and the provisions implementing it. Complete the relevant schedules, annexures and project-specific fields.		
2. Check consistency	Check the selected provisions against Tables 6–8 and other applicable instruments. Resolve conflicting permissions or restrictions, particularly between Steps 8–9, 10–11 and 15–16. Return to the relevant assessment or selection step where clarification is required.		
3. Review and finalize	Obtain required legal, ethics, institutional, repository or regulatory review. Do not finalise or execute the MDTAA while mandatory review or another prerequisite remains unresolved. Record the approved agreement version and outstanding implementation conditions.		
4. Implement and reassess	Do not commence the relevant activity until required approvals and safeguards are in place. Reapply the affected assessments and module-selection steps when material changes alter the object, tier, purpose, recipients, jurisdictions, infrastructure, access arrangements or required safeguards.		